

	2024-01421622	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$542,500 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The amendment to the settlement agreement is not signed by defendant or defendant's counsel. 2. In the April 16, 2026 order (ROA 69), the court stated that it prefers a 60-day period for the submission of exclusions, objections and disputes. The parties amended portions of the settlement agreement to address this issue, but paragraph 7.4.4 has not been amended and should be to conform with the other amendments to the settlement agreement. 3. The parties appear to have amended paragraph 5 of the settlement agreement to remove and/or change the effective date of the class and PAGA releases. The court will not require the class members and aggrieved employees to release their claims before defendant fully funds the settlement. Paragraph 5 should be revised accordingly. 4. The amendment to the settlement agreement appears to include two versions of paragraph 5.3. The settlement agreement should be amended to include only one version of paragraph 5.3. In addition, paragraph 5.3 (as amended) should not contain an ellipsis; it should state the entire release. 5. Paragraph 5.2 (as amended) should not contain an ellipsis; it should state the entire release. In addition, the following phrase should be removed from paragraph 5.2: "and all claims for liquidated damages, civil penalties, interest, fees, and costs based on the foregoing." 6. As stated in the April 16, 2026 order (ROA 69, No. 16), the last sentence of paragraph 7.8.3 of the settlement agreement should be revised. 7. In its April 16, 2026 order, the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. The circumstances stated in the Supplemental Bokhour Declaration (ROA 74 at ¶¶ 22-24) are not unique. The court preliminarily finds attorneys' fees not to exceed \$162,750 reasonable in this case.
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13	Reyes v. DMS Building Maintenance, Inc. 2019-01077939	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of an \$715,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The definition of "Agreement" or "Settlement" or "Settlement Agreement" in paragraph 3 of the second amendment to the amended settlement agreement should include amendments to the settlement agreement. 2. In the March 19, 2026 order (ROA 316), the court stated that the "PAGA Claims" provision in paragraph 23 was overbroad to the extent it defines the aggrieved employees' PAGA release. Settlement Agreement ¶ 49. The court stated that releases for aggrieved employees other than plaintiff should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. The "PAGA Claims" provision in the second amendment to the amended settlement agreement remains overbroad. Paragraph 23 of the second amendment should be revised as stated in the March 19, 2026 order. The notice should also be revised accordingly. 3. In the March 19, 2026 order (ROA 316), the court stated that the "Released Claims" provision in paragraph 31 was overbroad. The court stated that the release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the